

STATE OF NEW YORK

6351--A

2025-2026 Regular Sessions

IN SENATE

March 11, 2025

Introduced by Sens. ADDABBO, ASHBY, GRIFFO, SCARCELLA-SPANTON, STEC, WALCZYK -- read twice and ordered printed, and when printed to be committed to the Committee on Racing, Gaming and Wagering -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general municipal law, in relation to electronic bell jar games

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative findings and purpose. 1. The legislature here-
2 by finds that:
3 (a) bell jar games are a popular and profitable fundraising mechanism
4 for bona fide not-for-profit organizations across the state, generating
5 millions of dollars in net revenues for charitable purposes every year;
6 (b) authorized organizations that offer bell jars and other games of
7 chance must meet strict standards established by the New York state
8 general municipal law and the New York state gaming commission, includ-
9 ing receiving a license to conduct charitable gaming activities; and
10 (c) while other types of gaming in New York state have continued to
11 expand and improve, the operation of charitable gaming activities has
12 largely remained the same over the last several decades.
13 2. For the aforementioned reasons, the legislature hereby declares
14 that authorized organizations licensed by the New York state gaming
15 commission to conduct charitable gaming would greatly benefit from the
16 ability to operate electronic bell jar vending machines, which display
17 and dispense pre-printed bell jar tickets that have predetermined
18 winners and predetermined values for prizes, in order to help increase
19 charitable gaming profits across the state and attract more members to
20 join such organizations.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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§ 2. Subdivision 3-a of section 186 of the general municipal law, as amended by chapter 531 of the laws of 2011, is amended to read as follows:

3-a. "Bell jars" shall mean and include those games in which a participant shall draw a card from a jar, vending machine, including an electronic bell jar vending machine, or other suitable device or container which contains numbers, colors or symbols that are covered and which, when uncovered, may reveal that a prize shall be awarded on the basis of a designated winning number, color or symbol or combination of numbers, colors or symbols. Bell jars shall also include seal cards, coin boards, event games, and merchandise boards. An electronic bell jar vending machine shall track the sales of tickets and any other information as required by the commission and report such sales and other information to the commission, use electronic features to display and dispense pre-printed bell jar tickets, and may include audio and video features to display information about a ticket being dispensed, provided that such features shall not affect the outcome of the game.

§ 3. Subdivision 9 of section 188-a of the general municipal law, as added by chapter 960 of the laws of 1976, is amended to read as follows:

9. (a) The ~~[board]~~ commission shall have the power to approve and establish a standard set of games of chance equipment and shall by its rules and regulations prescribe the manner in which such equipment is to be reproduced and distributed to licensed authorized organizations. The sale or distribution to a licensed authorized organization of any equipment other than that contained in the standard set of games of chance equipment shall constitute a violation of this section.

(b) After the effective date of this paragraph, no electronic bell jar vending machine shall be sold, leased, distributed, installed, or operated by any manufacturer, distributor, or charitable organization until such machine has been approved by the commission. No electronic bell jar vending machine shall be approved by the commission unless the operation of the game demonstrates that there is a finite probability basis of having a predetermined quantity of chances among which there is a predetermined quantity of winners that pay a fixed and predetermined value of prizes, regardless of the symbols that are used or how those symbols are displayed on pre-printed bell jar tickets.

(c) The commission shall promulgate such rules and regulations as may be necessary for the approval and implementation of electronic bell jar vending machine gaming. The commission may revoke, suspend, or condition approval of an electronic bell jar vending machine. Upon request for authorization, the commission shall approve or deny such request within thirty days. If the commission denies such request for approval, it shall provide the reasons for such determination.

§ 4. Subdivision 3 of section 189 of the general municipal law, as amended by chapter 337 of the laws of 1998, is amended to read as follows:

3. No authorized organization licensed under the provisions of this article shall purchase, lease, or receive any supplies or equipment specifically designed or adapted for use in the conduct of games of chance from other than a supplier licensed by the ~~[board]~~ commission or from another authorized organization. Lease terms and conditions shall be subject to rules and regulations promulgated by the ~~[board]~~ commission. The provisions of this article shall not be construed to authorize or permit an authorized organization to engage in the business of leasing games of chance, supplies, or equipment. Furthermore, no organization shall purchase bell jar tickets~~[7]~~ or deals of bell jar tickets, or

1 purchase or lease any electronic bell jar vending machine, from any
2 other person or organization other than those specifically authorized
3 under sections one hundred ninety-five-n and one hundred ninety-five-o
4 of this article.

5 § 5. The opening paragraph of section 189-a of the general municipal
6 law, as amended by chapter 164 of the laws of 2003, is amended to read
7 as follows:

8 No person, firm, partnership, corporation or organization, shall sell
9 or distribute supplies or equipment specifically designed or adapted for
10 use in conduct of games of chance without having first obtained a
11 license therefor upon written application made, verified and filed with
12 the ~~[board]~~ commission in the form prescribed by the rules and regu-
13 lations of the ~~[board]~~ commission. As a part of its determination
14 concerning the applicant's suitability for licensing as a games of
15 chance supplier, the ~~[board]~~ commission shall require the applicant to
16 furnish to the ~~[board]~~ commission two sets of fingerprints. Such fing-
17 erprints shall be submitted to the division of criminal justice services
18 for a state criminal history record check, as defined in subdivision one
19 of section three thousand thirty-five of the education law, and may be
20 submitted to the federal bureau of investigation for a national criminal
21 history record check. Manufacturers of bell jar tickets shall be consid-
22 ered suppliers of such equipment. In each such application for a license
23 under this section shall be stated the name and address of the appli-
24 cant; the names and addresses of its officers, directors, shareholders
25 or partners; the amount of gross receipts realized on the sale and
26 rental of games of chance supplies and equipment to duly licensed
27 authorized organizations during the last preceding calendar or fiscal
28 year, and such other information as shall be prescribed by such rules
29 and regulations. The fee for such license shall be a sum equal to twen-
30 ty-five dollars plus an amount equal to two per centum of the gross
31 sales and rentals, if any, of games of chance equipment and supplies to
32 authorized organizations or authorized games of chance lessors by the
33 applicant during the preceding calendar year, or fiscal year if the
34 applicant maintains ~~[his]~~ their accounts on a fiscal year basis;
35 provided, however, that for manufacturers of electronic bell jar vending
36 machines, the fee for such license shall be one thousand dollars. No
37 license granted pursuant to the provisions of this section shall be
38 effective for a period of more than one year.

39 § 6. Section 195-c of the general municipal law, as amended by chapter
40 252 of the laws of 1998, is amended to read as follows:

41 § 195-c. ~~[1-]~~ Persons operating games; equipment; expenses; compen-
42 sation. 1. No person shall operate any game of chance under any license
43 issued under this article except a bona fide member of the authorized
44 organization to which the license is issued, or a bona fide member of an
45 organization or association which is an auxiliary to the licensee or a
46 bona fide member of an organization or association of which such licen-
47 see is an auxiliary or a bona fide member of an organization or associ-
48 ation which is affiliated with the licensee by being, with it, auxiliary
49 to another organization or association. Nothing herein shall be
50 construed to limit the number of games of chance licensees for whom such
51 persons may operate games of chance nor to prevent non-members from
52 assisting the licensee in any activity other than managing or operating
53 games. No game of chance shall be conducted with any equipment except
54 such as shall be owned or leased by the authorized organization so
55 licensed or used without payment of any compensation therefor by the
56 licensee. However, in no event shall bell jar tickets be transferred

1 from one authorized organization to another, with or without payment of
2 any compensation thereof. The head or heads of the authorized organiza-
3 tion shall upon request certify, under oath, that the persons operating
4 any game of chance are bona fide members of such authorized organiza-
5 tion, auxiliary or affiliated organization. Upon request by an officer
6 or the department any such person involved in such games of chance shall
7 certify that ~~[he or she has]~~ they have no criminal record. No items of
8 expense shall be incurred or paid in connection with the conducting of
9 any game of chance pursuant to any license issued under this article
10 except those that are reasonable and are necessarily expended for games
11 of chance supplies and equipment, prizes, security personnel, stated
12 rental if any, bookkeeping or accounting services according to a sched-
13 ule of compensation prescribed by the ~~[board]~~ commission, janitorial
14 services and utility supplies if any, and license fees, and the cost of
15 bus transportation, if authorized by such clerk or department. No
16 commission, salary, compensation, reward or recompense shall be paid or
17 given to any person for the sale or assisting with the sale of raffle
18 tickets.

19 2. For the purpose of the sale of tickets for the game of raffle, the
20 term "operate" shall not include the sale of such tickets by persons of
21 lineal or collateral consanguinity to members of an authorized organiza-
22 tion licensed to conduct a raffle.

23 3. Each electronic bell jar vending machine that has been approved by
24 the commission pursuant to paragraph (b) of subdivision nine of section
25 one hundred eighty-eight-a of this article shall do the following:

26 (a) read a barcode or similar form of encryption or marking on the
27 pre-printed bell jar ticket;

28 (b) reveal results;

29 (c) verify if a bell jar ticket is redeemable for a prize;

30 (d) electronically aggregate winning prizes for continued play;

31 (e) produce a voucher for prize redemption or proof of purchase;

32 (f) track the sales of tickets and any other information as required
33 by the commission and report such sales and other information to the
34 commission;

35 (g) require coded entry or similar authentication to activate play;

36 (h) prohibit spinning reels or other representations or audiovisual
37 features that mimic a video slot machine;

38 (i) prohibit any electronic user interface that mimics a video slot
39 machine, such as allowing manual and discrete player action to reveal
40 symbols;

41 (j) prohibit free plays, bonus games, multipliers, jackpots,
42 discounts, promotions, special offers, or other deals to initiate or
43 prolong player engagement; provided, however, that for purposes of this
44 paragraph, the prohibition on "jackpots" shall not include significant
45 prizes that may be won on the bell jar ticket itself;

46 (k) prohibit any feature that simulates skill or allows player input
47 to influence the outcome of a predetermined result;

48 (l) prohibit the display of near-miss outcomes that may mislead a
49 player into believing a win was narrowly missed; and

50 (m) limit the speed of play to prevent rapid successive wagering as
51 required by regulations promulgated by the commission.

52 4. The following information shall be displayed by each electronic
53 bell jar vending machine:

54 (a) the total number of tickets in each deal;

55 (b) the price of each ticket;

1 (c) the number and amount of prizes available or remaining in each
2 deal;
3 (d) the number and amounts of prizes that have been claimed in each
4 deal;
5 (e) the number of winners per ticket and its respective winning
6 numbers or symbols;
7 (f) the name of the game;
8 (g) the name or logo of the manufacturer of the tickets and the elec-
9 tronic bell jar vending machine; and
10 (h) the compulsive gambling hotline telephone number for the state of
11 New York.

12 5. If a voucher is produced by an electronic bell jar vending machine
13 for prize redemption, the following information shall appear on such
14 voucher:

15 (a) the aggregate prize amount payable to the player;
16 (b) the value of any unused tickets;
17 (c) the device number or other identification method for the vending
18 machine that produced such voucher;
19 (d) the date and time that such voucher was printed;
20 (e) the sequential number of such voucher;
21 (f) an identification number, barcode or similar form of encryption
22 that may be used to validate the prize amount payable to the player; and
23 (g) the period of time during which unused tickets or prize amounts
24 must be claimed.

25 6. The commission shall promulgate such rules and regulations as may
26 be necessary for the implementation of electronic bell jar vending
27 machine gaming in accordance with the provisions of this section.

28 § 7. Subdivisions 1 and 4 of section 195-n of the general municipal
29 law, as amended by chapter 637 of the laws of 1999, are amended to read
30 as follows:

31 1. Distribution; manufacturers. For business conducted in this state,
32 manufacturers licensed by the ~~[board]~~ commission to sell bell jar tick-
33 ets or electronic bell jar vending machines shall sell only such tickets
34 or vending machines to distributors licensed by the ~~[board]~~ commission.
35 Manufacturers of bell jar tickets, seal cards, merchandise boards, and
36 coin boards may submit samples, artists' renderings, or color photoco-
37 pies of proposed bell jar tickets, seal cards, merchandise boards, coin
38 boards, payout cards, and flares for review and approval by the ~~[board]~~
39 commission. Within thirty days of receipt of such sample or rendering,
40 the ~~[board]~~ commission shall approve or deny such bell jar tickets.
41 Following approval of a rendering of a bell jar ticket, seal card,
42 merchandise board, or coin board by the ~~[board]~~ commission, the manufac-
43 turer shall submit to the ~~[board]~~ commission a sample of the printed
44 bell jar ticket, seal card, merchandise board, coin board, payout card,
45 and flare for such game. Such sample shall be submitted prior to the
46 sale of the game to any licensed distributor for resale in this state.
47 For coin boards and merchandise boards, nothing herein shall require the
48 submittal of actual coins or merchandise as part of the approval proc-
49 ess. Any licensed manufacturer who willfully violates the provisions of
50 this section shall: (a) upon such first offense, have their license
51 suspended for a period of thirty days; (b) upon such second offense,
52 participate in a hearing to be conducted by the ~~[board]~~ commission, and
53 surrender their license for such period as recommended by the ~~[board]~~
54 commission; and (c) upon such third or subsequent offense, have their
55 license suspended for a period of one year and shall be guilty of a

1 class E felony. Any unlicensed manufacturer who violates the provisions
2 of this section shall be guilty of a class E felony.

3 4. Reports of sales. A manufacturer who sells bell jar tickets for
4 resale in this state shall file with the ~~[board]~~ commission, on a form
5 prescribed by the ~~[board]~~ commission a report of all bell jar tickets
6 sold to distributors in the state. The report shall be filed quarterly
7 on or before the twentieth day of the month succeeding the end of the
8 quarter in which the sale was made. The ~~[board]~~ commission may require
9 that the report be submitted via magnetic media or electronic data
10 transfer. Such report shall also include information regarding any elec-
11 tronic bell jar vending machines sold or leased to a distributor
12 licensed by the commission.

13 § 8. Subdivisions 1, 3, 4, and 5 of section 195-o of the general
14 municipal law, subdivision 1 as amended by chapter 637 of the laws of
15 1999, subdivisions 3 and 4 as added by chapter 309 of the laws of 1996
16 and subdivision 5 as amended by section 16 of part MM of chapter 59 of
17 the laws of 2017, are amended to read as follows:

18 1. Distribution; distributors. Any distributor licensed in accordance
19 with section one hundred eighty-nine-a of this article to distribute
20 bell jar tickets or electronic bell jar vending machines shall purchase
21 ~~[bell-jar]~~ such tickets and vending machines only from licensed manufac-
22 turers and may manufacture coin boards and merchandise boards only as
23 authorized in subdivision one-a of this section. Licensed distributors
24 of bell jar tickets and electronic bell jar vending machines shall sell
25 such tickets and vending machines only to not-for-profit, charitable or
26 religious organizations registered by the ~~[board]~~ commission. Any
27 licensed distributor who willfully violates the provisions of this
28 section shall: (a) upon such first offense, have their license suspended
29 for a period of thirty days; (b) upon such second offense, participate
30 in a hearing to be conducted by the ~~[board]~~ commission, and surrender
31 their license for such period as recommended by the ~~[board]~~ commission;
32 and (c) upon such third or subsequent offense, have their license
33 suspended for a period of one year and shall be guilty of a class E
34 felony. Any unlicensed distributor who violates this section shall be
35 guilty of a class E felony.

36 3. Sales records. A distributor shall maintain a record of all bell
37 jar tickets that it sells and all electronic bell jar vending machines
38 that it sells or leases. The record shall include, but need not be
39 limited to:

40 (a) the identity of the manufacturer from whom the distributor
41 purchased the product;

42 (b) the serial number of the product;

43 (c) the name, address, and license or exempt permit number of the
44 organization or person to which the sale was made;

45 (d) the date of the sale;

46 (e) the name of the person who ordered the product;

47 (f) the name of the person who received the product;

48 (g) the type of product;

49 (h) ~~[the serial number of the product;~~

50 ~~(i)]~~ the account number identifying the sale from the manufacturer to
51 distributor and the account number identifying the sale from the
52 distributor to the licensed organization; and

53 ~~[(i)]~~ (i) the name, form number, or other identifying information for
54 each game.

55 4. Invoices; agreements. (a) A distributor shall supply with each
56 sale of a bell jar product an itemized invoice showing the distributor's

1 name and address, the purchaser's name, address, and license number, the
2 date of the sale, the account number identifying the sale from the
3 manufacturer to distributor and the account number identifying the sale
4 from the distributor to the licensed organization, and the description
5 of the deals, including the form number, the serial number and the ideal
6 gross from every deal of bell jar or similar game.

7 (b) Prior to the sale, lease, or distribution of an electronic bell
8 jar vending machine to an authorized organization, the distributor or
9 manufacturer shall provide the contract or agreement for such sale,
10 lease or distribution to the commission for approval and any modifica-
11 tion to such contract or agreement thereafter. Such contract or agree-
12 ment shall show, at minimum:

13 (i) the name and address of the authorized organization;

14 (ii) the date of sale, lease or distribution;

15 (iii) the serial number of each such machine;

16 (iv) the material terms and conditions of such contract or agreement;
17 and

18 (v) any additional information as the commission may require.

19 (c) The commission may promulgate rules and regulations relating to
20 the terms of any contract or agreement for the sale, lease, or distrib-
21 ution of an electronic bell jar vending machine to an authorized organ-
22 ization. The commission shall approve or deny such contract or agree-
23 ment within thirty days of receipt and any material modification to such
24 contract or agreement thereafter. If the commission denies approval for
25 such contract, agreement or modification, it shall provide the reasons
26 for such determination.

27 5. Reports. A distributor shall report quarterly to the gaming commis-
28 sion, on a form prescribed by the gaming commission, its sales of each
29 type of bell jar deal or tickets and electronic bell jar vending
30 machines. This report shall be filed quarterly on or before the twenti-
31 eth day of the month succeeding the end of the quarter in which the sale
32 was made. The gaming commission may require that a distributor submit
33 the quarterly report and invoices required by this section via electron-
34 ic media or electronic data transfer.

35 § 9. Section 195-q of the general municipal law is amended by adding a
36 new subdivision 3 to read as follows:

37 3. (a) An authorized organization may only operate electronic bell jar
38 vending machines on premises that it owns or leases.

39 (b) Notwithstanding any other provision of this subdivision, an
40 authorized organization that, as of the effective date of this para-
41 graph, lawfully possesses and operates one or more bell jar machines
42 that are not electronic bell jar vending machines may apply to the
43 commission for authorization to replace any such machine or machines
44 with an equivalent number of electronic bell jar vending machines. The
45 commission shall authorize such replacement provided the authorized
46 organization and the electronic bell jar vending machines meet all other
47 requirements of this article. For any authorized organization not
48 covered by the preceding sentence, or for any additional machines sought
49 by an organization covered by the preceding sentence beyond the number
50 replaced, such authorized organization may apply to the commission to
51 operate one or more electronic bell jar vending machines. The commission
52 shall consider such applications pursuant to paragraph (g) of this
53 subdivision. In no event shall more than one electronic bell jar vending
54 machine be initially authorized for operation by an authorized organiza-
55 tion at any single leased premises that first receives commission
56 approval to operate such machine after the effective date of this para-

1 graph, irrespective of the number of authorized organizations that may
2 be co-lessees or co-owners of such premises, unless the commission
3 specifically authorizes a greater number pursuant to paragraph (g) of
4 this subdivision.

5 (c) No authorized organization shall operate an electronic bell jar
6 vending machine unless it is a games of chance licensee authorized by
7 the commission to operate an electronic bell jar vending machine. The
8 commission may promulgate rules and regulations as may be necessary for
9 the approval of an authorized organization to operate an electronic bell
10 jar vending machine. The commission may revoke, suspend, or condition
11 such approval. The commission shall approve or deny such request for
12 such approval within thirty days. If the commission denies such request,
13 it shall provide the reasons for such determination.

14 (d) Each bell jar vending machine shall generate sales reports and
15 such other information that the commission may direct by regulation.
16 The commission shall have access to the server of each electronic bell
17 jar vending machine for the purpose of monitoring and auditing at no
18 cost to the state.

19 (e) Any unclaimed funds or tickets left in any electronic bell jar
20 vending machine shall be retained by the authorized organization and
21 reported as net proceeds.

22 (f) No authorized organization may operate any electronic bell jar
23 vending machine within the following area: (i) to the east, state route
24 fourteen from Sodus Point to the Pennsylvania border with New York; (ii)
25 to the north, the border between New York and Canada; (iii) to the
26 south, the Pennsylvania border with New York; and (iv) to the west, the
27 border between New York and Canada and the border between Pennsylvania
28 and New York.

29 (g) The commission, in determining whether to approve the operation of
30 new electronic bell jar vending machines beyond those authorized pursu-
31 ant to the replacement provisions in paragraph (b) of this subdivision,
32 or in determining whether to authorize more than one such machine at a
33 single leased premises as provided in paragraph (b) of this subdivision,
34 shall consider the public interest, including the need to regulate and
35 limit the proliferation of electronic bell jar vending machines in a
36 manner that does not materially disrupt the existing gaming landscape or
37 adversely impact other lawful gaming entities within the state. The
38 commission shall additionally consider the impact on revenues to the
39 state and any potential impact on jobs when conducting its analysis
40 pursuant to this paragraph. The commission shall have the authority to
41 approve or deny applications for such additional machines, or to condi-
42 tion such approvals, based upon these considerations and any rules and
43 regulations promulgated hereunder.

44 § 10. This act shall take effect immediately.